

cised by trustees without the authority of the Court, nor can the Court itself make such an order in a summary way without the institution of a suit (*d*).

[39. **Where consent of bankrupt tenant for life required.**—Where there is a power of advancement with the consent of the tenant for life, and the tenant for life becomes a bankrupt, his power of consenting is not extinguished, but can only be exercised with the consent of his trustee in bankruptcy acting under the directions of the Court of Bankruptcy (*e*).]

40. **General power of advancing tenant for life.**—Where trustees had a power to apply a moiety of a trust fund in or towards the preferment or advancement of the tenant for life, or *otherwise for his benefit*, in such a manner as they should in discretion think fit, it was held that they might apply the moiety in payment of the debts of the tenant for life, the interest of which absorbed nearly the whole of his income and the principal of which he was unable to pay out of his own resources (*f*). [So a power of applying the capital for the benefit and advancement in the world of the tenant for life, coupled with words showing that the power * of advancement was a large one, has been [*590] held to justify applications of the trust funds for the benefit of the tenant for life which were not strictly advancements (*a*).]

41. **Debts barred by the Statute of Limitations.**—An executor has never been held responsible for paying a debt due and owing from the testator's estate, the remedy for which has been barred by the Statute of Limitations; and upon the same principle he may retain his own debt though barred (*b*). But an executor would not be at liberty to pay such a debt after a decree for the administration of the testator's estate, for from that time any other creditor, or even a legatee, specific, pecuniary, or residuary, may plead the statute in taking

(*d*) *Re Breeds' Will*, 1 Ch. D. 226.

[(*e*) *Re Cooper*, 27 Ch. D. 565.]

[(*f*) *Lowther v. Bentinck*, 19 L. R. Eq. 166; and see *Re Breeds' Will*, 1 Ch. D. 226; *Re Gore's Settlement Trusts*, W. N. 1876, p. 79.]

[(*a*) *Re Brittlebank*, 30 W. R. 89.]

(*b*) *Stahlschmidt v. Lett*, 1 Sm. & G. 415; *Hill v. Walker*, 4 K. & J. 166; *Hunter v. Baxter*, 3 Giff. 214; *Dring v. Greetham*, 1 Eq. Rep. 442; *Louis v. Rumney*, 4 L. R. Eq. 451.